

HOUSE BILL 96

By Davis

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 6, relative to investigations by the
attorney general and reporter.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-6-112(a), is amended by deleting the subsection and substituting:

(a) The attorney general and reporter has the authority to conduct an investigation and has the authority to initiate the criminal prosecution of any judge, chancellor, or judicial elected official, or district attorney general, or both, whenever:

(1) The attorney general and reporter receives information sufficient to constitute probable cause to investigate whether any official may have violated any state criminal law; and

(2)

(A) A decision to prosecute the official by the district attorney general of the district in which the offense occurred or in which a portion of the offense occurred may result in a personal, financial, or political conflict of interest; or

(B) The attorney general and reporter receives a report of a violation of § 8-31-103.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.